

Emmanuel Winton Gideon v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 October 2009 · Writ - C No. 51462 of 2009 · **Writ dismissed; relegated to clause 6.5 after paying under 6.3(2).**

HEADNOTE

A writ against a recovery citation for electricity arrears is not maintainable where the consumer has neither paid regularly nor protested the bill. The alternative remedy is to approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005 after paying dues in accordance with clause 6.3(2).

FACTUAL SUMMARY

The petitioner sought quashing of a recovery citation dated 29 August 2009 for electricity dues of Rs. 1,15,236. He admitted that his last regular payment was only up to September 1994, after which he continued to consume electricity without paying. On 3 March 2006, against a demand of Rs. 66,329 he paid only Rs. 28,000. Supply was disconnected. The Court recorded that he had neither paid dues regularly nor protested the enhanced charges or the correctness of the amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A consumer challenging a recovery citation for electricity dues, who has neither paid regularly nor protested the bill, must first approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005 for determination of the correct amount after paying the dues in accordance with clause 6.3(2). The writ is dismissed on that alternative remedy. ¶ 4-5

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY DUES AND VALIDITY OF THE RECOVERY CITATION DATED 29.8.2009

Merits of the bill and citation were not examined; petitioner relegated to clause 6.5 after paying under clause 6.3(2). ¶ 4-5